

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- x **SUMMONS**

FELIX COLLADO,

Index No.:

Plaintiff,

The basis of venue is:
Location of Incident

-against-

Plaintiff designates New York
County as the place of trial.THE CITY OF NEW YORK, DETECTIVE NELSON
PABON, Shield # 7335 and POLICE OFFICERS JOHN
DOES #1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.

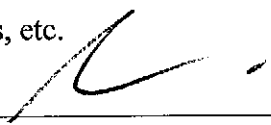
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 5, 2012

Yours, etc.


STUART E. JACOBS, ESQ.
JACOBS & HAZAN, LLP
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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FELIX COLLADO,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE NELSON
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INDEX NO:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, **FELIX COLLADO**, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff, while lawfully present inside of an apartment located at 160 Sherman Avenue, Apt #27 in the County of New York and State of New York, was unlawfully seized, strip searched, and arrested without probable cause or any other legal justification, by New York City police officers. Thereafter, defendants maliciously prosecuted plaintiff. Further, New York City police officers unlawfully and without any legal justification used excessive force against plaintiff during the course of the arrest. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff, unlawfully strip searched plaintiff, maliciously prosecuted plaintiff and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff was also subjected to an unlawful strip search at the police precinct.

PARTIES

2. Plaintiff Felix Collado is a citizen of the United States and a resident of the County of New York, City and State of New York.

3. New York City Police Officer Nelson Pabon, Shield #7335, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. On the date of the incident, June 17, 2010, defendant Police Officer Nelson Pabon, Shield #7335 was assigned to Narcotic Boro Manhattan North.

5. New York City Police Officer Nelson Pabon, Shield #7335 is being sued in his individual and official capacity

6. Police Officers John Does # 1-10, are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. On the date of incident, June 17, 2010, Police Officers John Does # 1-10, were assigned to Narcotics Boro Manhattan North.

8. Police Officers John Does # 1-10, are being sued in their individual capacity and official capacity.

9. At all times relevant herein, the individually named police officer defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

11. On June 17, 2010, at approximately 6:00 a.m., plaintiff Felix Collado, was lawfully inside of his apartment located at 160 Sherman Avenue, in the County New York and State of New York.

12. On June 17, 2010, at approximately 6:00 a.m., defendants knocked down the front door of the apartment without cause or legal justification and unlawfully entered the apartment without probable cause or legal justification.

13. Upon unlawfully entering the apartment defendants yelled at plaintiff to get on the floor.

14. Plaintiff was punched and kicked in the chest by the defendant police officers, without provocation or justification.

15. As a result of being kicked in the chest, plaintiff suffered serious physical injury, including, but not limited to coughing up blood.

16. At no time were any guns, drugs, or contraband found in the apartment, or on plaintiff's person.

17. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

18. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

19. Nevertheless, plaintiff was falsely arrested, unlawfully handcuffed by defendants and transported to the 34th precinct for arrest processing.

20. Plaintiff was fingerprinted, photographed, and placed in a holding cell.

21. While plaintiff was at the 34th precinct, defendants subjected plaintiff to an invasive strip search without reasonable suspicion or probable cause.

22. Thereafter, the defendants' forwarded false information to the New York County District Attorney's causing an unlawful prosecution to be initiated against plaintiff without probable cause.

23. Plaintiff was transported to Manhattan Central Booking, and on June 17, 2010, after approximately 20 hours in police custody, plaintiff was arraigned in Manhattan County Criminal Court.

24. Based upon defendants' false allegations, bail was set in the amount of \$50,000.

25. Plaintiff was unable to post the bail and was remanded to Manhattan Detention Center.

26. Plaintiff spent approximately 6 days at Manhattan Detention Center.

27. On or about June 23, 2010, the Judge lowered plaintiff's bail to \$1,500 and plaintiff posted bail and was released.

28. After approximately 10 court appearances, all charges against plaintiff were dismissed on or about June 7, 2011.

29. Plaintiff was unable to recover his personal property that was taken by the defendant police officers, including, but not limited to \$7,500 in cash, a Gold Chain, a bracelet, and an Itouch.

30. Defendants lacked probable cause to arrest plaintiff.

31. Plaintiff did not commit any crime, nor did the defendants have probable cause to believe plaintiff committed a crime.

32. Defendants observed the violation of plaintiff's rights by other police officers under the Constitution of the United States and New York State Law and did nothing to intervene and/or prevent the unjustifiable false arrest, strip search, malicious prosecution, and use of excessive force against plaintiff.

33. The false arrest, false imprisonment, unlawful strip search, and malicious prosecution of plaintiff by defendants caused plaintiff to sustain psychological and emotional

trauma. Moreover, the excessive force used by defendants against plaintiff, by the individually named police officer defendants caused plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth

Amendment Rights

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants were acting in concert and within the scope of their authority, arrested and caused plaintiff to be unlawfully seized, unlawfully strip searched, maliciously prosecuted, and falsely arrested and imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Malicious Prosecution

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.

41. Defendants initiated, commenced and continued a criminal proceeding against plaintiff.

42. There was actual malice by defendants and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

43. The prosecution and criminal proceedings terminated favorably for plaintiff when all charges were dismissed on or about June 7, 2011.

44. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The use of excessive force by defendants in punching and kicking plaintiff in the chest was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause to believe that plaintiff was concealing weapons or other contraband, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

51. As a result of the aforementioned conduct of defendants, plaintiff Felix Collado sustained injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

54. Defendants failed to intervene to prevent the unlawful conduct of other officers described herein.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

56. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

57. Plaintiff repeats and realleges paragraphs 1 through 56 as if fully set forth herein.

58. At all relevant times hereto, defendants THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officers in the protection of the rights of the plaintiff under the laws of the State of New York.

59. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants individually named defendants, individuals who were unfit for the performance of police duties on June 17, 2010, at the aforementioned location.

JURY DEMAND

60. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for relief as follows:

That the jury find and the Court adjudge and decree that plaintiff Felix Collado shall recover compensatory damages in the sum of \$2,000,000 against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$1,000,000 against the individual defendants, jointly and severally.

a. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
September 5, 2012

By: 

STUART E. JACOBS, ESQ.
JACOBS & HAZAN, LLP
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, NY 10007

ATTORNEY'S VERIFICATION

Stuart E. Jacobs, Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner in the law firm of **Jacobs & Hazan, LLP**, and I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
September 5, 2012



STUART E. JACOBS, ESQ.